

Court No. - 3

Case :- WRIT - C No. - 19536 of 2016

Petitioner :- Gajendra Singh

Respondent :- State Of U.P. And 2 Ors.

Counsel for Petitioner :- Sudhir Kumar Shukla, Sanjay Kumar Mishra

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Krishna Murari, J.

Hon'ble Vinod Kumar Misra, J.

Learned counsel for the petitioner contends that without giving any opportunity to object the provisional assessment and without following the procedure of issuing notice, consequential recovery proceedings has been initiated against the petitioner.

This controversy has been dealt with in the various judgement of Division Bench of this Court.

The issue requires scrutiny.

Sri Mahboob Ahmad prays for and is granted two weeks' time to seek instructions.

Put up this petition as fresh on 19th May, 2016.

Till then no coercive action shall be taken against the petitioner.

Order Date :- 29.4.2016

A. Pt. Singh

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Respondent :- State Of U.P. And 2 Ors.

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Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Krishna Murari, J.

Hon'ble Prashant Kumar, J.

Heard Shri Sudhir Kumar Shukla, learned counsel for the petitioner, learned Standing counsel for the State respondents and Sri Mahboob Ahmad appearing for respondent no. 3.

By means of this petition filed under Article 226 of the Constitution of India, petitioner has prayed for quashing of the impugned recovery certificate dated 29.02.2016 issued by the respondent no. 2.

When the matter was taken up as fresh on 29.4.2016, the Court passed the following order :

"Learned counsel for the petitioner contends that without giving any opportunity to object the provisional assessment and without following the procedure of issuing notice, consequential recovery proceedings has been initiated against the petitioner.

This controversy has been dealt with in the various judgement of Division Bench of this Court.

The issue requires scrutiny.

Sri Mahboob Ahmad prays for and is granted two weeks' time to seek instructions.

Put up this petition as fresh on 19th May, 2016.

Till then no coercive action shall be taken against the petitioner."

Today when the case called out, Sri Mahboob Ahmad, learned counsel for the respondent no. 3, on the basis of instruction, fairly stated that before issuing the recovery certificate, no provisional assessment has been made. Copy of the instructions passed on are taken on record.

In the absence of provisional assessment and compliance of the provisions contained under clause 6.8(b) of the U.P. Electricity Supply Code, 2005, which is mandatory, the impugned recovery certificate dated 29.2.2016 issued by the respondent no. 3 is not liable to be sustained and is hereby quashed.

Writ petition stands allowed.

However, there shall be no order as to costs.

Order Date :- 23.5.2016/OP